From the Legal Tender Cases to the Gold Clause Cases:

Bancroft's Nightmare Fulfilled, 1884–1935

Notes prepared from primary sources and Edwards (2018)

February 27, 2026

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1 Introduction: A Second Act for the Legal Tender Precedent

George Bancroft died in 1891, seven years after *Juilliard v. Greenman* (1884) established that the legal tender power of Congress was a permanent attribute of sovereignty, not limited to wartime emergencies. He had warned that the decision "retroactively undermined the constitutional basis for the honor that Grant and the Republicans had claimed in 1869" when they pledged gold repayment of the 5-20 bonds. But Bancroft could not have foreseen how completely the jurisprudential machinery he denounced would be deployed a half-century later, when Franklin Roosevelt abrogated all gold clauses in public and private contracts, raised the price of gold from $20.67 to $35 per ounce, and the Supreme Court was asked to decide whether the government could repudiate its own explicit promises to pay in gold coin "of the present standard of value."

The Gold Clause Cases of February 18, 1935—*Norman v. Baltimore & Ohio Railroad Co.* (294 U.S. 240), *Nortz v. United States* (294 U.S. 317), and *Perry v. United States* (294 U.S. 330)—are the direct constitutional descendants of the Legal Tender Cases that Bancroft excoriated. The majority opinions of Chief Justice Hughes relied explicitly and repeatedly on *Knox v. Lee* and *Juilliard v. Greenman* as foundational precedents. The dissent of Justice McReynolds attempted to distinguish the Legal Tender Cases from the Roosevelt gold program—and in doing so essentially adopted the position that Bancroft, and Justice Field before him, had articulated decades earlier. The episode is the subject of Sebastian Edwards's *American Default: The Untold Story of FDR, the Supreme Court, and the Battle over Gold* (2018), which provides a detailed economic and political narrative of the crisis.

2 The Roosevelt Gold Program, 1933–1934

The sequence of executive and legislative actions that culminated in the Gold Clause Cases was breathtaking in its speed and scope:

- **March 6, 1933**: President Roosevelt declared a "bank holiday," citing heavy withdrawals of gold and speculative activity in foreign exchange. The Secretary of the Treasury was instructed to make payments in gold only under license.

- **March 9, 1933**: The Emergency Banking Relief Act confirmed the President's orders, amended the Trading with the Enemy Act of 1917 to authorize regulation of gold transactions, and empowered the Secretary of the Treasury to require surrender of all gold coin, gold bullion, and gold certificates.

- **April 5, 1933**: Executive Order 6102 required all persons to deliver gold coin, bullion, and certificates to Federal Reserve Banks by May 1, receiving "an equivalent amount of any other form of coin or currency" in exchange.

- **May 12, 1933**: Section 43 of the Agricultural Adjustment Act authorized the President to reduce the weight of the gold dollar by up to 50 percent and declared that all coins and currencies "shall be legal tender for all debts public and private."

- **June 5, 1933**: The Joint Resolution (Pub. Res. 73–10) declared that gold clauses in all obligations, "heretofore or hereafter incurred," were "against public policy" and that all obligations should be discharged "upon payment, dollar for dollar, in any coin or currency which at the time of payment is legal tender for public and private debts." This applied explicitly to obligations *of* the United States as well as private contracts.

- **January 30, 1934**: The Gold Reserve Act transferred ownership of all monetary gold to the United States, provided that the President should not fix the gold dollar at more than 60 percent of its then-existing weight, and established a stabilization fund from the resulting "profit."

- **January 31, 1934**: By presidential proclamation, the weight of the gold dollar was reduced from 25.8 grains to 15 5/21 grains, nine-tenths fine—a devaluation of approximately 41 percent. The Treasury booked a paper profit of $2,800,000,000.

Edwards (2018) emphasizes that for months Roosevelt manipulated the gold price through daily purchases, creating enormous uncertainty in markets, and that the administration was prepared to defy the Supreme Court if the Gold Clause Cases went against it. Roosevelt drafted executive orders to close the stock exchanges and prepared a radio address declaring that "if the policy of the government ... is to be irrevocably fixed by decisions of the Supreme Court," then "the people would have ceased to be their own rulers." Attorney General Homer Cummings advised that the Court should be immediately packed to secure a favorable ruling—foreshadowing the court-packing crisis of 1937.

3 The Three Cases

3.1 *Norman v. Baltimore & Ohio Railroad Co.* (Private Gold Clauses)

The lead case involved a $22.50 coupon from a Baltimore & Ohio Railroad bond dated February 1, 1930, which promised payment "in gold coin of the United States

of America of or equal to the standard of weight and fineness existing on February 1, 1930." After devaluation, the gold value of the coupon was $38.10, but the railroad paid only $22.50 in legal tender currency. The bondholder sued for the difference.

Chief Justice Hughes, writing for a 5–4 majority (joined by Brandeis, Stone, Roberts, and Cardozo), upheld the Joint Resolution as applied to private contracts. The opinion's constitutional reasoning rested squarely on the Legal Tender Cases.

3.2 *Nortz v. United States* (Gold Certificates)

Nortz held $106,300 in gold certificates—essentially warehouse receipts for gold coin deposited with the Treasury—and was compelled by Executive Order 6102 to surrender them for their face value in currency. He sought an additional $64,000 representing the loss from devaluation. The Court held that since he could not lawfully have held the gold itself, he had suffered no compensable damage.

3.3 *Perry v. United States* (Government Gold Bonds)

Perry owned a $10,000 Fourth Liberty Loan bond issued in 1918, which promised payment of principal and interest "in United States gold coin of the present standard of value." After devaluation, he demanded $16,931.25 (at $1.69 per dollar of the bond's face value). The Treasury refused to pay more than $10,000 in legal tender.

Hughes's opinion in *Perry* reached a remarkable conclusion: the Joint Resolution was *unconstitutional* insofar as it purported to abrogate the government's own gold clause obligations—Congress could not use its power to regulate money so as to repudiate obligations it had issued under the power to borrow "on the credit of the United States." But the bondholder nonetheless had *no remedy*, because he could not show actual damage: since gold could no longer be held or exported, the dollars

he received had the same purchasing power as the gold dollars he was promised. The government's repudiation was declared unconstitutional *and* consequence-free.

Justice Stone concurred separately, agreeing with the result but deploring the majority's willingness to pronounce on the unconstitutionality of the Resolution when no damages could be recovered: "It will not benefit this plaintiff, to whom we deny any remedy, to be assured that he has an inviolable right to performance of the gold clause."

4 The Legal Tender Cases as Foundation for the Gold Clause Decisions

The connection between the 1870s Legal Tender Cases and the 1935 Gold Clause Cases was not incidental—it was the explicit doctrinal foundation on which the majority built its reasoning and against which the dissent framed its protest.

4.1 Hughes's Majority: *Knox* and *Juilliard* as Controlling Precedent

In *Norman*, Hughes wrote that it was "unnecessary to review the historic controversy as to the extent of this power, or again to go over the ground traversed by the Court in reaching the conclusion that the Congress may make Treasury notes legal tender in payment of debts previously contracted," citing *Knox v. Lee* (12 Wall. 457) and *Juilliard v. Greenman* (110 U.S. 421) as establishing the relevant "settled principles." He then laid out what he called the "postulates" of the Legal Tender decisions:

1. The source of congressional authority over currency lies not in the coinage clause alone but in "all the related powers conferred upon the Congress and appropriate

to achieve 'the great objects for which the government was framed'—'a national government, with sovereign powers.'" This was a direct quotation from *Knox v. Lee* and *McCulloch v. Maryland*.

2. "The broad and comprehensive national authority over the subjects of revenue, finance, and currency is derived from the aggregate of the powers granted to the Congress"—language taken directly from Justice Gray's opinion in *Juilliard*.

3. Congress has power "to enact that the government's promises to pay money shall be, for the time being, equivalent in value to the representative of value determined by the coinage acts"—quoted from *Knox v. Lee* at page 553.

4. Congress may "impress upon [its obligations] such qualities as currency for the purchase of merchandise and the payment of debts, as accord with the usage of sovereign governments"—quoted from *Juilliard* at page 447.

5. Contracts "must be understood as having been made in reference to the possible exercise of the rightful authority of the government, and ... no obligation of a contract can extend to the defeat of that authority"—from *Knox v. Lee* at pages 549–551.

6. The Fifth Amendment does not prohibit indirect consequences of legitimate monetary legislation, just as it does not prohibit the effects of a new tariff or an embargo: "whoever supposed that, because of this, a tariff could not be changed?"—again directly from *Knox v. Lee*.

Hughes also discussed the companion Legal Tender era cases—notably *Bronson v. Rodes* (7 Wall. 229) and *Trebilcock v. Wilson* (12 Wall. 687)—which had upheld contracts for payment in gold coin when two kinds of money were simultaneously

in lawful circulation. But Hughes turned these decisions against the gold clause bondholders: those cases had arisen when "gold was still in circulation and no act of the Congress prohibiting the enforcement of such clauses had been passed." The situation in 1935 was fundamentally different: Congress had *explicitly* prohibited gold transactions and had established a single, uniform legal tender currency. Hughes noted that Justice Bradley, in his concurrence in *Knox v. Lee*, had expressed the view that Congress *could* have invalidated gold clauses even in the 1860s and had merely chosen not to do so—a "prophetic" position now vindicated by the Joint Resolution.

In the *Perry* opinion, Hughes similarly cited the Legal Tender Cases for what they established and for how the present situation differed: "The case is not the same as if gold coin had remained in circulation. That was the situation at the time of the decisions under the legal tender acts of 1862 and 1863." The footnotes invoked Justice Strong—who had written the majority in *Knox v. Lee*—and his subsequent opinion in the Sinking Fund Cases regarding the binding character of the government's own contracts, as well as Alexander Hamilton's 1795 statement that "when a government enters into a contract with an individual, it deposes, as to the matter of the contract, its constitutional authority, and exchanges the character of legislator for that of a moral agent."

4.2 McReynolds's Dissent: Distinguishing *Knox* from Roosevelt's Program

Justice McReynolds's passionate dissent—delivered orally with such vehemence that, according to contemporary accounts, he departed from his text to exclaim "this is Nero at his worst; the Constitution is gone"—directly engaged the Legal Tender Cases and attempted to distinguish them from Roosevelt's gold program. His argument

anticipated, and in some respects echoed, precisely the critique that Bancroft had mounted against *Juilliard* fifty years earlier.

McReynolds quoted the Legal Tender Cases at length, emphasizing the passage from *Knox v. Lee* that:

> The legal tender acts do not attempt to make paper a standard of value. We do not rest their validity upon the assertion that their emission is coinage, or any regulation of the value of money; nor do we assert that Congress may make anything which has no value money. What we do assert is that Congress has power to enact that the government's promises to pay money shall be, for the time being, equivalent in value to the representative of value determined by the coinage acts, or to multiples thereof.

The critical words, for McReynolds, were "for the time being." The greenbacks issued during the Civil War were *promises to pay dollars*—"a pledge of the national credit"—with the expectation, "ultimately realized," that "in due time, they would be redeemed in standard coin." And indeed they were, in 1879. "The purpose was to meet honorable obligations, not to repudiate them." The Legal Tender Cases, McReynolds argued, provided "no support to what has been attempted here," because Roosevelt's program was fundamentally different in character: "The plan disclosed is . . . primarily designed to destroy private obligations, repudiate national debts, and drive into the Treasury all gold within the country in exchange for inconvertible promises to pay, of much less value."

McReynolds also explicitly invoked the distinction that both the Legal Tender dissents and Bancroft had drawn between emergency wartime measures and permanent peacetime powers. He devoted a full paragraph to showing that during the Civil War

"there was no coin—specie—in general circulation in the United States between 1862 and 1879" and that "both gold and silver were treated in business as commodities," so that the Legal Tender Cases "arose during that period" and could not be mechanically extended. The key sentence was: "This Court has not heretofore ruled that Congress may require the holder of an obligation to accept payment in subsequently devalued coins, or promises by the government to pay in such coins."

The Wikipedia entry on the Gold Clause Cases reports McReynolds's position in summary form: "McReynolds distinguished the cases at hand from the Legal Tender Cases, arguing that in the earlier cases the government sought to continue operating until it could meet its obligations, while the Roosevelt administration apparently sought to nullify them." This distinction—between using paper money as a temporary bridge to future specie payment, and using paper money as an instrument for permanent repudiation—was precisely the distinction that Bancroft had made in his reading of the Legal Tender Cases and the 5-20 bond controversy.

5 Structural Parallels: From the 5-20s to the Liberty Bonds

The parallels between the 5-20 bond episode of the 1860s and the Gold Clause Cases of the 1930s are striking and, in several respects, structurally identical.

5.1 The Ambiguity of the Promise

In the 5-20 episode, the Act of February 25, 1862 specified that *interest* would be paid in coin but was silent on *principal*. Chase bridged the gap with reputational commitment, and the ambiguity was exploited by Pendleton's "Ohio Idea" before

being resolved by the Public Credit Act of 1869.

In the Liberty Bond episode, the bonds explicitly promised payment of *both* principal and interest "in United States gold coin of the present standard of value." But the Joint Resolution of June 5, 1933 declared this explicit promise "against public policy" and provided for discharge "dollar for dollar" in any legal tender. The 1930s episode was thus, in one sense, more audacious than Pendleton's proposal: where Pendleton had proposed to exploit a *silence* in the statute, Roosevelt abrogated an *explicit* promise.

5.2 The Quantum of the Discrimination

The potential fiscal discrimination in 1868 was the difference between paying the 5-20 principal in gold (or gold-equivalent currency, as greenbacks had depreciated to roughly 72 cents on the dollar at their nadir) and paying it in depreciated greenbacks. The actual greenback discount at the time of the "Ohio Idea" debate was roughly 28 percent.

The fiscal discrimination in 1934 was determined by the devaluation itself: the gold dollar was reduced from 25.8 grains to 15 5/21 grains, a reduction of approximately 41 percent. Perry's $10,000 Liberty Bond, on his calculation, entitled him to $16,931.25 in the devalued currency. The government's "profit" from the gold revaluation was booked at $2.8 billion. McReynolds pointed out with acid precision that, if the power to devalue were unlimited, "a gold dollar containing one grain of gold may become the standard, all contract rights fall, and huge profits appear on the Treasury books... perhaps $20,000,000,000, maybe enough to cancel the public debt, maybe more!"

5.3 Resolution by Political Power

Both episodes were resolved by the political branch that happened to prevail. The 5-20 ambiguity was settled by Grant's election and the Public Credit Act—in favor of the bondholders. The gold clause ambiguity was settled by Roosevelt's congressional majorities, his executive orders, and a narrow 5–4 Supreme Court decision—against the bondholders. The Legal Tender Cases—specifically *Knox v. Lee* and *Juilliard*—supplied the constitutional architecture for the 1935 result.

5.4 Court-Packing: Threat and Precedent

The parallel extends to the institutional machinery of constitutional resolution. In 1870–71, Grant's appointment of Justices Strong and Bradley to existing vacancies produced the reversal of *Hepburn v. Griswold* in *Knox v. Lee*. Whether this constituted deliberate court-packing remains debated, but Bancroft treated it as such. In 1935, Attorney General Cummings openly recommended packing the Court to secure a favorable decision in the Gold Clause Cases—and when the Court ruled 5–4 for the government, the immediate pressure was relieved, but the broader confrontation culminated in Roosevelt's Judicial Procedures Reform Bill of 1937 (the "court-packing plan").

Edwards (2018) documents the administration's contingency planning in detail, including Roosevelt's drafted radio address and executive orders to close the exchanges. The threat to the Court's institutional independence was, if anything, more explicit in 1935 than it had been in 1870.

6 Bancroft's Ghost: *Juilliard* Comes Home to Roost

The Gold Clause Cases of 1935 vindicated Bancroft's worst fears in almost every particular. Consider the structure of the argument:

1. **Sovereignty as source of power**: Bancroft had condemned Justice Gray's reasoning in *Juilliard* that "the power to make the notes of the government a legal tender ... being one of the powers belonging to sovereignty in other civilized nations, and not expressly withheld from congress by the constitution" justified the legal tender power. Hughes in *Norman* relied on precisely this reasoning, deriving congressional authority from "the aggregate of the powers granted to the Congress" rather than from any express grant, and treating the power to regulate money as coextensive with national sovereignty.

2. **Implied powers trumping explicit contracts**: Bancroft had warned that *Juilliard*'s logic would "change the whole character of our government" from one of enumerated powers to one without limits. In *Norman*, Hughes held that "contracts, however express, cannot fetter the constitutional authority of the Congress" and that parties "cannot remove their transactions from the reach of dominant constitutional power by making contracts about them." This was the Legal Tender doctrine applied not merely to implicit money contracts (as in *Knox v. Lee*) but to *explicit* gold covenants—exactly the extension that Bancroft and Field had feared.

3. **No effective remedy**: Bancroft had observed that the Constitution's nominal protections were meaningless if the Court would not enforce them. In *Perry*, Hughes declared the abrogation of the government's gold clause unconstitutional—and then denied Perry any recovery, on the ground that he could not show actual

damage. The government had made it illegal to hold gold, thereby preventing the bondholder from establishing the loss that the unconstitutional action had inflicted. As McReynolds put it: "Having made payment in this metal impossible, the government cannot defend by saying that, if the obligation had been met, the creditor could not have retained the gold; consequently he suffered no damage because of the nondelivery."

4. **The Fourteenth Amendment's public debt clause**: Hughes invoked Section 4 of the Fourteenth Amendment—"the validity of the public debt of the United States, authorized by law, shall not be questioned"—as "confirmatory of a fundamental principle" that applied to the Liberty Bonds. But having invoked this sweeping principle, he denied it any operative force. Bancroft would have recognized the pattern: the Constitution says what it says, the Court acknowledges what the Constitution says, and then the Court permits Congress to do what the Constitution forbids.

7 Edwards's *American Default* and the Economics of Abrogation

Sebastian Edwards's *American Default* (Princeton University Press, 2018) provides the most comprehensive modern account of the Gold Clause episode. Edwards frames the abrogation of the gold clauses as a sovereign default—the only peacetime default by the United States in its history—and analyzes its economic consequences while also providing a detailed narrative of the legal and political maneuvering.

Several of Edwards's contributions are particularly relevant to the themes developed in this and the accompanying document on Bancroft:

- **The scale of the default**: Edwards estimates the total face value of outstanding gold clause obligations at approximately $75 billion in early 1933, a figure consistent with the estimates presented to the Court. The abrogation represented a transfer of wealth from creditors to debtors of staggering proportions.

- **The parallel to the 5-20 episode**: Edwards explicitly draws the connection between the 1860s debate over paying the 5-20 bonds in greenbacks and the 1930s abrogation of gold clauses. In both cases, the government's obligation was denominated in a specific medium of payment, and the government sought either to substitute a cheaper medium or to redefine the unit of account. The economic logic was identical: fiscal pressure generated a temptation to inflate away (or redefine away) the real burden of debt.

- **The contingency planning**: Edwards documents in detail Roosevelt's preparations for an adverse Supreme Court ruling, including executive orders, the drafted radio address, and the policy of deliberate market manipulation designed to create pressure for the government's position. This planning—unknown at the time—reveals that the administration viewed the Gold Clause Cases as an existential political confrontation, not merely a legal dispute.

- **The international dimension**: Edwards places the episode in the context of global abandonment of the gold standard in the 1930s and argues that the abrogation of gold clauses was part of a broader international pattern. This is relevant to Bancroft's critique of *Juilliard*'s reasoning from what "other civilized nations" do: by 1935, other nations *were* defaulting on gold obligations, and the universality of the practice—far from being shocking—was treated by the majority as evidence that the power was a legitimate attribute of sovereignty.

8 The Arc from 1862 to 1935: Ambiguity, Commitment, and Repudiation

Taken together, the 5-20 bond episode, the Legal Tender Cases, Bancroft's *Plea*, and the Gold Clause Cases describe a seventy-year arc in American fiscal constitutionalism whose internal logic is remarkably coherent.

1. **1862**: Congress creates deliberate ambiguity in the 5-20 bonds (silent on principal) and in the Legal Tender Act (silent on the constitutional scope of the power). Chase bridges both ambiguities with reputational commitment.

2. **1869–1871**: The political settlement resolves the 5-20 ambiguity in favor of bondholders (Public Credit Act) but resolves the constitutional ambiguity in favor of governmental power (*Knox v. Lee*).

3. **1884**: *Juilliard v. Greenman* extends the legal tender power to peacetime, establishing that it is a permanent attribute of sovereignty.

4. **1886**: Bancroft publishes his *Plea*, warning that the *Juilliard* precedent has given Congress unlimited power over the medium of payment and that no contractual promise—including the government's own—is safe.

5. **1933–1935**: Roosevelt exercises exactly the power that Bancroft feared, abrogating all gold clauses including those in government bonds. The Supreme Court, by a 5–4 vote, sustains the program, relying explicitly on *Knox v. Lee* and *Juilliard* as controlling precedent.

The Legal Tender Cases thus served as the constitutional transmission mechanism between the Civil War fiscal emergency and the New Deal monetary revolution.

Without *Knox v. Lee*'s reversal of *Hepburn*, and without *Juilliard*'s extension of the legal tender power to peacetime, the Gold Clause Cases would have lacked their doctrinal foundation. Hughes could not have written that it was "unnecessary to review the historic controversy" and could not have treated the Legal Tender decisions as "settled principles." The resolution of the 1860s ambiguity—in favor of governmental power, and against the hard-money constitutionalism of Chase's *Hepburn* opinion, of Field's dissent, and of Bancroft's *Plea*—made the 1935 result, if not inevitable, at least doctrinally available.

Yet the Gold Clause Cases also reveal a distinction within the Legal Tender tradition that complicates the story. In *Perry*, Hughes drew a "clear distinction between the power of Congress to control or interdict the contracts of private parties when they interfere with the exercise of its constitutional authority, and a power in Congress to alter or repudiate the substance of its own engagements." The government's gold clause obligations were *different* from private obligations precisely because they were exercises of the borrowing power, and "the binding quality of the promise of the United States is of the essence of the credit which is so pledged." This distinction—between what the government can do to private contracts and what it can do to its own—is the one principle from Bancroft's tradition that survived into the 1935 majority opinion. But it survived as a formal pronouncement without practical consequence: the government was told it had acted unconstitutionally and was then told it owed nothing.

The Perry paradox—unconstitutional but damage-free—is perhaps the deepest illustration of the problem that Bancroft identified. A constitutional commitment that the Court pronounces inviolable but refuses to enforce is, in the language of modern commitment theory, a soft constraint masquerading as a hard one. The bondholder learns that his right is "inviolable" at exactly the moment when he learns

that it is worthless. Bancroft's fear that the Legal Tender decisions had converted the Constitution's protections into "vain promises" found its most exquisite confirmation in a decision that simultaneously vindicated and nullified his central principle.

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